

**JUSTIFICATION REVIEW DOCUMENT**  
**Single Source Justification (Simplified Acquisition)**  
**FAR 6.302-3 Expert Services**

**Program: Commercial Utility Program (CUP)**

The U.S. Army Legal Services Agency, Environmental Law Division (USALSA-ELD) needs expert witness and utility analytical services for the Department of Defense (DOD) and Federal Executive Agencies (FEA), specifically for Fort Bliss, Texas.

**Authority:** 10 U.S.C. 3204(a)(3) or 41 U.S.C.3304(a)(3), as implemented by FAR 6.302-3, Industrial mobilization; engineering, developmental, or research capability; or expert services, and FAR 13.106-1(b)(1) Soliciting from a single source not exceeding the simplified acquisition threshold.

**Amount:** [REDACTED]

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Date

**Reviews:** I have reviewed this justification and find it adequate to support the Single Source Justification (Simplified Acquisition).

**Project Manager:**

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Date

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Date

**Sole Source Justification**  
**FAR 6.302-3 Expert Services**

**1. Contracting Activity:** U.S. Army Corps of Engineers Huntsville Center, RG300, Redstone Arsenal, AL 35898.

**2. Description of Action:** The Department of Defense (DOD), specifically for Fort Bliss, Texas, requests a new firm fixed price contract with Exeter Associates, Inc. (“Exeter” or “Contractor”). The Government projects the award to be issued in February 2025, fiscal year 2025, using Operations and Maintenance funds with Purchase Request and Commitment (PR&C)

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**3. Description of Supplies/Services:** El Paso Electric Company (EPE or “Company”) provides electric utility service to Fort Bliss in Texas at a cost of approximately ██████████. On January 27, 2025, EPE filed a petition with the Public Utility Commission of Texas (PUCT or “Commission”), asking the PUCT to approve a ██████████ Texas jurisdiction retail increase in base (non-fuel) and other miscellaneous revenues based on a test-year ended September 30, 2024. The net increase to base revenues is ██████████ after accounting for the revenues EPE is already recovering through its Distribution Cost Recovery Factor (DCRF) and its Generation Cost Recovery Rider (GCRR). That is, the proposed increase in annual Texas retail revenues will be offset by setting EPE's current DCRF and GCRR to zero, a reduction of ██████████. EPE's request results in an average percent increase in base rates of 13.65 percent. EPE is also updating the Advanced Metering Surcharge and the Retiring Plant Rider Factor in this case. These two changes will combine for an increase of \$ ██████████. The rate intervention expert witness and utility analytical services support the U.S. Army Legal Services Agency - Environmental Law Division's (USALSA-ELD) regulatory attorneys to ensure fair and equitable charges and conditions of service for Fort Wainwright and other Department of Defense and Federal Executive Agencies (DOD/FEA).

To support USALSA-ELD with this rate intervention, the Contractor shall provide expert witness services and analytical evaluations with recommendations on the proposed Revenue Requirement (RR), Cost of Service (COS), interim and final rate increases, Return on Equity (ROE), and settlement discussions to the USALSA-ELD team in the upcoming proceedings, hearings, and negotiations. RR, ROE, and COS shall include providing independently derived COS pricing based on the utility's data and utility consultant/expert analyst services. The Contractor shall provide additional utility rate and risk analysis as needed. The Contractor shall also provide expert witness services and testimony in opposition to the EPE/PUCT rate case proposals. Additionally, the Contractor shall prepare a written report of recommendations regarding corresponding positions the Government should take in the EPE/PUCT's rate filing proceedings. The Contractor shall review the pertinent documents filed with the Commission, provide technical assistance and guidance, and provide testimony or comments, both written and oral, to the Commission to assist the DOD on the potential impact of the proceeding and rulings as it pertains to these filings. The Contractor shall review Army briefs, position papers, and discuss Army goals.

Period of Performance: 52 weeks after receipt of order (ARO).

Total Value: ██████████

**4. Authority Cited:** 10 U.S.C. 3204(a)(3) or 41 U.S.C.3304(a)(3), as implemented by FAR 6.302-3, Industrial mobilization; engineering, developmental, or research capability; or expert services.

**5. Reason for Authority Cited:** 10 U.S.C. 3204(a)(3). The head of an agency may use procedures other than competitive procedures only when it is necessary to award the contract to a particular source or sources in order to procure the services of an expert for use, in any litigation or dispute (including any reasonably foreseeable litigation or dispute) involving the Federal Government, in any trial, hearing, or proceeding before any court, administrative tribunal, or agency, or to procure the services of an expert or neutral for use in any part of an alternative dispute resolution or negotiated rulemaking process, whether or not the expert is expected to testify.

41 U.S.C.3304(a)(3) further allows agencies to award sole source actions to procure the services of an expert for use, in any litigation or dispute (including any reasonably foreseeable litigation or dispute) involving the Federal Government, in any trial, hearing, or proceeding before a court, administrative tribunal, or agency, whether or not the expert is expected to testify; or to procure the services of an expert or neutral for use in any part of an alternative dispute resolution or negotiated rulemaking process, whether or not the expert is expected to testify.

As described in FAR 6.302-3(b)(1)(iii), full and open competition need not be provided for when it is necessary to award the contract to a particular source or sources to acquire the services of an expert or neutral person for any current or anticipated litigation or dispute.

**6. Efforts to Obtain Competition:** The Government has selected Exeter because its consultants have superior expertise and experience for these unique issues when compared to the other firms considered. Further, Exeter is not conflicted from this case and is readily available and appropriately staffed to consult and testify (as may be needed) to meet the scheduled deadlines in this case.

The lead attorney in this case has experience in the field of utility rate litigation, having interacted with various expert witnesses from different consulting firms. Based on the attorney's knowledge of expert witnesses who provide testimony in utility rate cases, the USALSA-ELD Regulatory Attorney, Kyle J. Smith, has determined Exeter is the most capable firm that can provide the consultation and testimony necessary to advance the legal interests of DOD/FEA in this case. Specifically, Exeter served as the consultants and expert witnesses who provided testimony in the last EPE/PUCT rate case. As a result, Exeter is familiar with the issues raised by the current rate case, EPE/PUCT's rate structures, Fort Bliss's infrastructure and service needs, and extensive experience testifying before the PUCT. Based on these reasons, it is in the best interest of the government to retain Exeter as the consultant and expert witnesses in this case. Exeter's familiarity with the issues, Fort Bliss, and the Texas regulatory environment will allow them to immediately provide assistance in this case and save valuable time that another contractor would need to familiarize themselves with these issues.

In accordance with FAR 5.202(a)(14), this action will not be synopsisized.

Because this is a sole source action, effective competition is not applicable.

**7. Actions to Increase Competition:** Due to the time constraints placed upon the Government to secure experts for utility rate litigation, it is usually not possible to compete the requirements. However, the Government will continue to perform market research and evaluate opportunities compete future requirements when practical to do so.

**8. Market Research:** Exeter is not conflicted from this case and is readily available and appropriately staffed to consult and testify (as may be needed) to meet the scheduled deadlines in this case.

**9. Interested Sources:** In accordance with FAR 5.202(a)(14), this action will not be synopsisized.

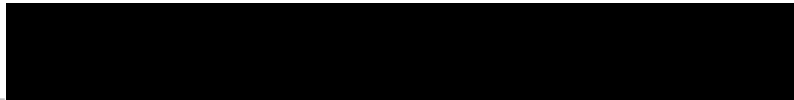
**10. Other Facts:**

a. Procurement History – There is no prior procurement history for this action.

b. Subcontractor Competition – Since this acquisition is for a single litigation expert, there is no opportunity to subcontract out any of the services rendered in this requirement. As a result, no subcontractor goals will be required.

**11. Fair and Reasonable Cost Determination:** I hereby determine that the anticipated price to the Government for this contract action will be fair and reasonable in comparison to the Rough Order Magnitude (ROM).

**12. Contracting Officer Certification:** I certify that this justification is accurate and complete to the best of my knowledge and belief.

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| Lisa.L.Steenburn, Contracting Officer<br><a href="mailto:Lisa.L.Steenburn@uasace.army.mil">Lisa.L.Steenburn@uasace.army.mil</a> |  | Date |